

25SMCV06837 25SMCV06837

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Case Number: 25SMCV06837 Hearing Date: July 2, 2026 Dept: 207

TENTATIVE RULING

DEPARTMENT

207

HEARING DATE

July 2, 2026

CASE NUMBER

25SMCV06837

MOTION

Motion to Strike Portions of Complaint

MOVING PARTIES

Defendants Glenn Feig, individually and on behalf of Feig
Family Trust and Mike Larocca, individually and on behalf of
Larocca/Freudenberger Trust

OPPOSING PARTIES

Plaintiffs Grace Bindley and Max Kidd

MOTION

This case arises from a dispute between landlord and tenant of residential property.

On December 30, 2025, Plaintiffs Grace Bindley and Max Kidd ("Plaintiffs") filed suit against Defendants Larocca/Freudenberger Trust; Feig Family Trust; Glenn Feig; and Mike Larocca ("Defendants") alleging ten causes of action as follows:

1.

Breach of Warranty of Habitability (Civil Code, § 1941.1)

2.

Breach of Warranty of Habitability (Health & Safety Code, § 17920.3)

3.

Breach of Warranty of Habitability (Civil Code, § 1942.4)

4.

Negligence – Premises Liability

5.

Nuisance

6.

Intentional Infliction of Emotional Distress

7.

Breach of Contract

8.

Breach of Covenant of Quiet Enjoyment

9.

Fraud/Deceit/Intentional Misrepresentation

10. Bad

Faith Retention of Security Deposit

Defendants now move to strike the requests for punitive damages and attorneys' fees. Plaintiffs oppose the motion and Defendants reply.

ANALYSIS

1.

MOTION TO STRIKE

Any party, within the time allowed to respond to a pleading, may serve and file a motion to strike the whole pleading or any part thereof. (Code Civ. Proc., § 435, subd. (b)(1); Cal. Rules of Court, rule 3.1322, subd. (b).) On a motion to strike, the court may: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (a)-(b); *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782.)

a.

Punitive Damages

In ruling on a motion to strike punitive damages, "judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth." (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.) To state a prima facie claim for punitive damages, a plaintiff must allege the elements set forth in the punitive damages statute, Civil Code section 3294. (*College Hosp., Inc. v. Superior Court* (1994) 8 Cal.4th 704, 721.) Per Civil Code section 3294, a plaintiff must allege that the defendant has been guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).) As set forth in the Civil Code,

(1)

"Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others. (2) "Oppression" means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights. (3) "Fraud" means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(Civ. Code, § 3294, subd. (c)(1)-(3), emphasis added.)

Further, a plaintiff must assert facts with specificity to support a conclusion that a defendant acted with oppression, fraud or malice. To wit, there is a heightened pleading requirement regarding a claim for punitive damages. (See *Smith v. Superior Court* (1992) 10 Cal.App.4th 1033, 1041-1042.) "When nondeliberate injury is charged, allegations that the defendant's conduct was wrongful, willful, wanton, reckless or unlawful do not support a claim for exemplary damages; such allegations do not charge malice. When a defendant must produce evidence in defense of an exemplary damage claim, fairness demands that he receive adequate notice of the kind of conduct charged against him." (*G. D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 29 [cleaned up].) In *Anschutz Entertainment Group, Inc. v. Snapp*, the Court of Appeal noted that the plaintiffs' assertions related to their claim for punitive damages were "insufficient to meet the specific pleading requirement." (*Anschutz Entertainment Group, Inc. v. Snapp* (2009) 171 Cal.App.4th 598, 643 [plaintiffs alleged "the conduct of Defendants was intentional, and done willfully, maliciously, with ill will towards Plaintiffs, and with conscious disregard for Plaintiff's rights. Plaintiff's injuries were exacerbated by the malicious conduct of Defendants. Defendants' conduct justifies an award of exemplary and punitive damages"]; see also *Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166 ["The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. Not only must there be circumstances of oppression, fraud, or malice, but facts must be alleged in the pleading to support such a claim"].)

Plaintiffs

allege:

6. As a

result of Defendants' failure to properly maintain the Premises, Plaintiffs were forced to endure exposure to dangerous levels of toxic mold, and other hazards. Defendants failed to disclose, inspect, or warn Plaintiffs of the presence of these filthy infestations at the premises before they moved into the Premises even though Defendants had actual and constructive notice of the infestations. Moreover, Defendants, by and through their agents, employees and managers, intentionally concealed the infestations from Plaintiffs in order to induce them into providing a substantial security deposit and remaining as tenants for an extended period of time.

7. As

further alleged herein, at all relevant times, the subject premises were and are intentionally and/or negligently maintained by Defendants in an abhorrent state of disrepair. In such maintenance of disrepair of the premises by Defendants, Defendants and each of them, permitted infestation of the premises with vermin and pestilence, including but not limited to exposure to dangerous levels of toxic mold and other uninhabitable living conditions. As of the date of filing of this matter, Plaintiffs are informed and believe, that the entirety of the subject premises is infested with toxic mold of the individual unit occupied by Plaintiffs during all relevant times herein alleged.

8.

Between July 2024 and June, 2025, Plaintiffs repeatedly notified Defendants of the defects in the subject premises, including but not limited to the pervasive infestation of the subject premises with exposure to dangerous levels of toxic mold and other uninhabitable conditions. In spite of repeated and persistent notice to Defendants, Defendants failed and refused to remedy the situation and cure all defects in the premises.

9.

Between July 2024, and June, 2025, Plaintiffs repeatedly advised Defendants of personal injuries and harm caused to Plaintiffs by exposure to exposure to dangerous levels of toxic mold in Plaintiffs' apartment unit. Defendants failed and refused to remediate this dangerous condition. Furthermore, Defendants actively sought to conceal the existence and persistence of this dangerous

condition on the premises from Plaintiffs.

10. The

defective conditions of the subject property were not caused by the wrongful or abnormal use of the subject property by Plaintiffs or anyone acting under Plaintiffs' authority, direction, or control.

11.

Defendants' failure to maintain the dwellings in a decent, safe and habitable condition has harmed Plaintiffs, who now seek damages for the injuries to which Defendants have subjected them. This then directly and proximately caused the physical injuries to Plaintiffs described hereinbelow.

12. As a

direct and proximate result of Defendants' failure to maintain the Premises in a safe, habitable condition, Plaintiffs have suffered emotional and physical injuries, including but not limited to:

a)

Cognitive injuries caused by exposure to dangerous levels of toxic mold;

b)

Physical injuries related to exposure to dangerous levels of toxic mold;

c)

Severe skin rash and personal injuries over the entirety of the body caused by exposure to toxic mold;

d) Upper

respiratory infections caused by exposure to toxic mold;

e)

Property damage to furniture, clothing and personal belongings, as a result of exposure to toxic mold and other pestilence and vermin;

f)

Illness relating to toxic mold exposure, sleeplessness, inconvenience, humiliation, grief, anxiety and other symptoms;

g)

Infections;

h) Loss
of sleep;

i)
Anxiety and mental anguish;

j)
Depression

k) Other
injuries and damages.

13.

Plaintiffs are informed and believe, and thereupon allege that, at all relevant times while Plaintiffs have lived at the subject property, they have been involuntarily and unknowingly exposed to exposure to dangerous levels of toxic mold and excessive amounts of mold and/or fungi and other airborne contaminants and/or irritants circulating through and about the subject property. Mold is a known toxic substance and an uninhabitable condition on property. Meanwhile, the mold, bacteria and other airborne contaminants and/or irritants to which Plaintiffs were exposed were present in the subject property and as a result of Defendants' failure to operate, maintain and repair defects in the subject premises. Plaintiffs' health has and is being adversely affected. This then directly and proximately caused physical injuries to Plaintiffs described hereinbelow.

14.

Plaintiffs have endured inconveniences and incurred out-of-pocket expenses to repair or remediate the Premises. Furthermore, Plaintiffs suffered property damage and emotional distress, mental anguish as well as physical injuries due to these conditions described more fully below.

15.

Plaintiffs expended considerable time and effort complaining to Defendants trying to resolve these issues of the Subject Property. Defendants have unlawfully ignored all of Plaintiffs' repeated complaints about these problems.

[...]

33. As a

direct and proximate result of the excessive levels of dangerous levels of toxic mold and/or fungus discovered in the subject property, Plaintiffs have suffered injuries to their health, strength, and activities, including but not limited to, cognitive injuries, respiratory injuries and other illnesses.

Plaintiffs have been injured and suffered mental, physical, psychological, and emotional pain and suffering. Plaintiffs have also suffered injury to their bodies, physical health, strength and activity, all of which have caused, and continue to cause, additional pain and suffering. Plaintiffs have also incurred medical expenses as a result of their mold and/or fungi exposure, and are informed and believe and based thereon allege, that they will continue to incur medical expenses in the future stemming from these injuries already suffered. Defendants, and each of them, constructed and/or renovated the subject property which contained mold and/or fungi levels which exceeds those that are permissible and deemed dangerous and hazardous. Furthermore, the Defendants, and each of them, failed to properly avoid, prevent, remedy, and/or remove the defective condition which resulted in the dangerous and harmful molds and/or fungi and other contaminants from the subject property. Therefore, the subject property remained in a deleterious condition contaminated with mold and/or fungi, bacteria and other airborne contaminants and/or other irritants, causing, creating, and producing the hereinabove described health hazards to Plaintiffs.

34. As a

direct and proximate result of the conduct of Defendants and each of them, in causing, creating, and permitting the subject property to acquire and continue to contain fixtures that emit dangerous levels of toxic mold, fungi, bacteria and other airborne contaminants and/or irritants to exist on the premises, Plaintiffs suffered, and will continue to suffer severe emotional distress. Plaintiffs' said physical and emotional distress result from having been exposed to the dangerous levels of mold and/or fungi and other airborne irritant contamination and its prospective effects upon Plaintiffs' bodies. Further, Plaintiffs suffered a terrible mental burden caused by the thought of the destruction of treasured personal belongings, and are informed and believe, and thereon allege will continue to suffer mental anguish as a result of the destruction of Plaintiffs' personal belongings due to the mold contamination.

35. The

defective conditions of the subject property were not caused by the wrongful or

abnormal use of the subject property by Plaintiffs or anyone acting under Plaintiffs' authority, direction, or control. At all times relevant prior to Defendants' negligent conduct at the subject property, Plaintiffs were in good health and had no known physical ailments or conditions which impaired their health, lifestyle, and/or ability to work.

36. Not

until subsequent to approximately June 5, 2025 did Plaintiffs become aware that a causal connection existed between the dangerous levels of deleterious toxins and "mold" contaminants in Plaintiffs' living environment at the subject property and Plaintiffs' injuries. Plaintiffs formally vacated the subject premises in or about June of 2025 due to defendants' refusal to repair the hazardous and uninhabitable conditions on the premises.

37. As a

direct and proximate result of Defendants' conduct or inaction, Plaintiffs suffered general damages in an amount to be established according to proof at trial, but in excess of the jurisdictional minimum of the Superior Court.

38.

Plaintiffs immediately reported the problems to Defendants, and Defendants responded by promising to address the problem. Defendants have never addressed or repaired the problem.

39.

Plaintiffs have suffered physical injury as well as emotional distress. Despite repeated and ongoing complaints to management, this trauma is ongoing.

40.

Defendants have failed to remedy the issues raised by Plaintiffs by maintaining a company policy of apathy and/or denial.

41. At

no time have Defendants offered relocations expenses, replacement costs to the Plaintiffs, or allowed the Plaintiffs a reasonable off-set for the harms and losses each have sustained as a result to the known habitability issues in their respective units, and the subject premises.

42. At

all relevant times, Plaintiffs consistently made timely rental payments on

time. Plaintiffs continued to make monthly rent payments after vacating the premises. Defendants have failed to return any rent Plaintiffs have paid.

43. Due

to Defendants' failure to remedy the habitability issues, Plaintiffs had to throw away their belongings, and seek medical care for their injuries. Such daily activity has taken its toll on the tenants in every way imaginable. By failing to eradicate the toxic mold infestations on the premises, Defendants violated Health and Safety Code (H.&S.C.) §17920.3(a).

44.

Plaintiffs are informed and believe that the Premises have been subject to multiple inspections by the County of Los Angeles and City of Los Angeles that resulted in citations against Defendants for multiple violations of the California County Code, the California Health and Safety Code and the Los Angeles County Municipal Code.

45.

Notwithstanding a valid written lease, Defendants were required to put and maintain the Premises in condition suitable for occupation by human beings and also to repair subsequent dilapidations that rendered the Premises habitable under Civil Code §1941. 46. During Plaintiffs' tenancy the subject premises sustained massive water intrusions that caused damage to Plaintiffs' unit. 47. Defendants failed and refused to timely and properly remediate the dangerous fixtures and prevent exposing Plaintiffs to dangerous levels of toxic mold and substances during Plaintiffs' tenancy. 48. Following the massive water intrusions, Defendants failed to timely and properly remediate the situation. As a result, toxic mold developed in Plaintiffs' unit. 49. Furthermore, between July, 2024, and June 2025, the subject premises became increasingly infested with toxic mold and other uninhabitable conditions. 50. Despite Plaintiffs' persistent complaints about the toxic mold, water intrusion damage, fungus, and infestations, Defendants have refused to remediate the situation, and the problems continue.

51.

Plaintiffs are informed and believe that in advance of Defendants renting the subject Unit to Plaintiff, Defendants knew that the overall Premises were/are not habitable because of dangerous toxic mold throughout, frequent water intrusions into the property, unrepaired damage to the property, and other issues regarding uninhabitability of the premises. Furthermore, Plaintiffs are

informed and believe that the last full time tenant prior to Plaintiffs notified Defendants of presence of uninhabitable conditions in the subject property including but not limited to water intrusion and mold infestation.

52. At

all times, the Premises were to be kept in habitable condition by the Defendants, and that Defendants' failure and refusal to maintain and keep said Premises in habitable condition was and is a material breach of the written agreement. The presence of harmful organisms, like toxic mold, and other harmful matter caused Plaintiffs to become ill. Despite actual knowledge by the Defendants of these conditions, they took inadequate actions, if any, to correct the horrible conditions that Plaintiffs were forced to endure.

53.

Defendants violated the Civil Code by seeking to collect regular rent payments from Plaintiffs when the rental unit was not habitable and by failing to properly maintain pest control on the property.

54.

Plaintiffs are informed and believe and thereon allege that the toxic mold infestations were caused by Defendants' failure to regularly inspect and maintain the living areas of the Subject Property with reasonable care, including proper fumigation.

55.

Plaintiffs are informed and believe and thereon allege that Defendants had prior knowledge of the presence of the toxic mold infestation, and failed to inspect and warn Plaintiffs of this problem.

56.

Plaintiffs have discovered toxic and harmful mold within their unit. Plaintiffs have ingested and continue to ingest toxins and have suffered exposure to toxic substances that threaten disease and/or illness and have contaminated Plaintiffs' personal property. Plaintiffs have suffered, and continue to suffer, symptoms including, but not limited to, skin rashes, difficulty breathing, infections to their body, and asthma as a result of defendants, and each of their aforementioned conduct. Plaintiffs harbor serious fears that toxic ingestion and/or exposure to such mold and other airborne contaminants was and is of such magnitude and proportion as to likely result in further serious permanent disease and/or illness.

57.

Defendants breached their required duty to keep the premises safe and in proper repair by allowing, permitting and causing the premises to be unsafe, and rendered the subject property uninhabitable by failing to failing to properly maintain the property at all relevant times.

58.

Plaintiffs notified the Defendants and their agents about the habitability violations but Defendants failed to correct the habitability conditions. The Defendants, and each of them, own other rental properties, and are experienced managers of residential property and are aware that absent appropriate maintenance, serious habitability violations will develop that would seriously and materially affect the Plaintiffs' quiet and peaceful enjoyment of the Premises.

59.

Plaintiffs gave multiple notices to Defendants and DOES 1-50, inclusive, wherein they mentioned the numerous habitability problems identified above and requested and demanded that Defendants undertake proper remediation and prevention. No appropriate action was taken by Defendants to remedy the situation.

60.

Plaintiffs have been suffering ongoing medical problems because of the uninhabitable conditions of their apartment. Plaintiffs suffered no such health complaints prior to moving to the Premises. Plaintiffs have sought medical treatment, and incurred medical expenses, as a result of the illnesses related to the unhealthy condition of the Premises, and will incur additional medical expenses in the future.

61. As a

result of the breach of duty all of the Defendants owed to the Plaintiffs, the Plaintiffs sustained serious illness and injuries as and otherwise injured themselves on the property of the Defendants on the above referenced date which injuries and illnesses were directly and proximately caused by the negligence and breach of duty of the defendants. Plaintiffs have sustained injuries and health problems caused or exacerbated by the conditions. As a consequence of the conditions and the physical injuries caused by the conditions, Plaintiffs have also sustained mental suffering, frustration and anxiety.

62.

During Plaintiffs' tenancy, the Subject Property was unsafe, unsanitary, unhealthy, uninhabitable, in a state of disrepair, and in violation of building, health and safety laws. Relevant laws, set forth more fully below, that Defendants violated include, among others, the habitability laws and standards contained in the City of Los Angeles codes, California Civil Code, and the California Health and Safety Code due to infestations by toxic mold, and other uninhabitable conditions.

63. Due

to the presence of dangerous levels of toxic mold, and other conditions, the Premises occupied by Plaintiffs were unfit for human occupation in that it substantially failed to comport with applicable building and housing code standards that materially affect the tenants' health and safety.

64.

Plaintiffs and public officials informed Defendants about health and safety risks of the Premises associated with exposure to unsafe levels of mold, infestation with toxic mold, and other uninhabitable conditions. Defendants failed to repair the defective and dangerous conditions within a reasonable time.

65.

Plaintiffs repeatedly notified the Defendants of these conditions and requested that Defendants have them repaired. Defendants failed to repair most of the problems at the Premises. Defendants further unlawfully refused to remediate the infestation of toxic mold, and other uninhabitable conditions.

(Complaint ¶¶ 6-15, 33-65.)

The

Court does not find that these allegations suffice to allege oppression or malice with requisite particularity.

Although Plaintiffs describe their illnesses with specificity,

Plaintiffs do not specify who they informed about the habitability issues, when they informed them, how they informed them, etc.

Defendants

further allege they are "informed and believe" that Plaintiffs had prior

knowledge of mold issues due to the prior leak issues and prior inspections/citations by the city.

(Complaint ¶¶ 44, 55.) But allegations made “on information and belief” are generally insufficient to satisfy heightened pleading requirements “unless the facts upon which the belief is founded are stated in the pleading.” (Dowling v. Spring Valley. Water Co. (1917) 174 Cal.218, 221.)

Here, Plaintiffs do not provide any specific facts about when the inspections/citations took place, where they took place, and which specific Defendant or Defendants were aware of those inspections/citations and why.

In connection with the fraud cause of action, Plaintiffs additionally allege the following:

152.

Beginning in or about July, 2024 through June, 2025, the following Defendants, made the following intentional misrepresentations to Plaintiffs:

a. In or about July of 2024, Defendants' property owner and authorized agent GLENN FEIG, acting in his capacity as owner and manager of the subject property, while inducing Plaintiffs to continue living and paying rent for the subject Unit, concealed from Plaintiffs that the subject property contained dangerous levels of toxic mold and denied the presence of toxic mold in the Unit in spite of his later admitted knowledge that such mold was present;

b. In or about February 2025, Defendant GLENN FEIG, acting in his capacity as property owner and manager of the subject property, made repeated and constant misrepresentations of material facts concerning making necessary and required repairs to the subject property;

d. [sic]

In or around July 2024, Defendant GLENN FEIG, acting in his capacity as property owner and manager of the subject property, intentionally misrepresented to Plaintiffs on multiple occasions that Defendants would promptly and properly remediate the dangerous and toxic mold infestations, and test the mold and toxic contamination contained in the Subject Property in

spite of the fact that Defendants had no intention of ever performing said misrepresentations;

e.

Between July, 2024 through June, 2025, Defendant GLENN FEIG, acting in his capacity as property owner and manager of the subject property, concealed from Plaintiffs that the subject property contained toxic mold levels far in excess of safe levels;

153. All misrepresentations made by defendants, and each of them, were false.

154. At the time defendants, and each of them, made their misrepresentations to Plaintiffs, defendants knew said misrepresentations to be false.

155. At all relevant times Defendant GLENN FEIG was acting in the capacity as owner and manager of the subject property, actively sought to conceal the hazardous conditions on the Subject Premises from all members of the public, including Plaintiffs through active misrepresentations.

156. These misrepresentations by Defendants, and each of them, were made in a deliberate effort to deceive and defraud Plaintiffs and to induce them to act in reliance on these misrepresentations in the manner hereinafter alleged, or with the expectation that Plaintiffs would so act.

157. The intentional misrepresentations made by Defendants, and each of them, to Plaintiffs regarding the mold and toxic contamination and the source thereof were made with the intention of defrauding Plaintiffs of their rights and causing them harm.

158. The misrepresentations by defendants, and each of them, to Plaintiffs regarding their claim caused Plaintiffs to delay prosecution of their legal rights under the instant action, all to the detriment of Plaintiffs.

(Complaint ¶¶ 152-158.)

While

these allegations contain more specific facts about the when (July 2024 and February 2025) and who (Glenn Feig) made misrepresentations, specific facts underlying Mr. Feig's purported knowledge of falsity have not been alleged. In other words, Plaintiffs have not alleged how Glenn Feig knew the property was infested with mold when he purportedly made the misrepresentations. As such, Plaintiffs have not alleged fraud with requisite particularity.

Therefore, finding Plaintiffs

have not adequately alleged oppression, fraud, or malice with requisite particularity, the Court grants Defendants' motion to strike punitive damages allegations from the Complaint.

b.

Attorneys' Fees

Plaintiffs

seek attorneys' fees pursuant to the private attorney general doctrine of Civil Code section 1021.5 and Civil Code section 1942.4, subd. (b)(2), which provides that if a landlord collects rent on premises in uninhabitable conditions, under certain circumstances, the prevailing tenant may recoup their reasonable attorneys' fees and costs, and pursuant to Civil Code section 1717 and the underlying lease agreements.

Code of Civil Procedure section 1021.5 provides:

Upon motion, a court may award attorneys'

fees to a successful party against one or more opposing parties in any action which has resulted in the enforcement of an important right affecting the public interest if: (a) a significant benefit, whether pecuniary or nonpecuniary, has been conferred on the general public or a large class of persons, (b) the necessity and financial burden of private enforcement, or of enforcement by one public entity against another public entity, are such as to make the award appropriate, and (c) such fees should not in the interest of justice be paid out of the recovery, if any.

Defendants

argue that this case, which involves a single unit in a single property will not confer a significant benefit on the general public or a large class of

persons, notwithstanding the Complaint's allegation that any judgment or settlement will impact, "the homeowners and tenants who live in the area around the Subject Property[.]" (Complaint ¶ 83.) In opposition, Plaintiffs merely direct the Court to paragraph 83.

The

Court agrees with Defendants that Plaintiffs have not alleged a large class of persons will benefit from an action primarily, if not entirely concerning the habitability of a single unit.

Notwithstanding,

Civil Code section 1942.4 provides:

(a) A

landlord of a dwelling may not demand rent, collect rent, issue a notice of a rent increase, [...] if all of the following conditions exist prior to the landlord's demand or notice:

(1) The

dwelling substantially lacks any of the affirmative standard characteristics listed in Section 1941.1 or violates Section 17920.10 of the Health and Safety Code, or is deemed and declared substandard as set forth in Section 17920.3 of the Health and Safety Code because conditions listed in that section exist to an extent that endangers the life, limb, health, property, safety, or welfare of the public or the occupants of the dwelling.

(2) A

public officer or employee who is responsible for the enforcement of any housing law, after inspecting the premises, has notified the landlord or the landlord's agent in writing of his or her obligations to abate the nuisance or repair the substandard conditions.

(3) The

conditions have existed and have not been abated 35 days beyond the date of service of the notice specified in paragraph (2) and the delay is without good cause. For purposes of this subdivision, service shall be complete at the time of deposit in the United States mail.

(4) The

conditions were not caused by an act or omission of the tenant or lessee in violation of Section 1929 or 1941.2.

(b) (1)

A landlord who violates this section is liable to the tenant or lessee for the actual damages sustained by the tenant or lessee and special damages of not less than one hundred dollars (\$100) and not more than five thousand dollars (\$5,000).

(2) The

prevailing party shall be entitled to recovery of reasonable attorney's fees and costs of the suit in an amount fixed by the court.

(Civil Code, § 1942.4.) Plaintiffs allege:

96. In

or about July 2024, through June 2025, Plaintiffs have complained to Defendants about the poor condition of the premises, as stated above.

97. At

all relevant times, Plaintiffs timely paid the rent, and Defendants collected without fail, despite the Premises' substantial defects.

98.

Plaintiffs are informed and believe that the County of Los Angeles and/or City of Los Angeles has inspected and Defendants' defective premises, and sometime after visiting the premises, public officer housing law inspectors provided written notices to the Defendants of their obligation to repair the prohibited conditions. These notices, on the dates listed on the notices/code enforcement orders concerning The Property, were issued as alleged herein. The defective conditions were not caused by any act or omission of Plaintiffs.

99.

Plaintiffs are informed and believe that Defendants failed to abate or repair the conditions identified in the Code enforcement orders within 35 days of receiving those notices, during which time the substandard conditions continued to exist without abatement.

100.

Even after Defendants were notified by the County and/or City inspector that

repairs were needed to the Subject Property, Defendants failed to make timely repairs. Defendants continued to demand and collect rent from the Plaintiffs while the prohibited conditions identified by housing authorities were unabated.

(Complaint ¶¶ 96-100.)

When

alleging noncompliance with a statute, allegations made on information and belief are only proper where the allegations involve matters peculiarly within the knowledge of the defendants and they are supported by a statement of facts upon which the belief is founded. (See Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 542.) Here, Plaintiffs have not alleged the factual basis underlying their belief that the City and/or County of Los Angeles visited the premises and issued written notices to the Defendants to repair, when those notices were issued, or that Defendants failed to repair within 35 days and then continued to collect rent.

As

for attorneys' fees pursuant to the lease agreement, Civil Code section 1717 provides:

In any

action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs.

Here,

Plaintiffs allege:

143. As

a direct and proximate result thereof, Plaintiffs have incurred reasonable attorneys' fees and costs, pursuant to the rental agreement, to Civil Code §§ 1717 and 1942.4.

(Complaint ¶ 143.)

Defendants

argue that the Complaint fails to allege the statutory attorney fee provision in haec verba. The Court agrees. Although Plaintiffs seek attorneys' fees "pursuant to the rental agreement," Plaintiffs do not actually allege that the rental agreement contains an attorney fee provision.

Therefore,

the Court grants Defendants' motion to strike the requests for attorneys' fees.

2.

LEAVE TO AMEND

A

plaintiff has the burden of showing in what manner the complaint could be amended and how the amendment would change the legal effect of the complaint, i.e., state a cause of action. (See *The Inland Oversight Committee v. City of San Bernardino* (2018) 27 Cal.App.5th 771, 779; *PGA West Residential Assn., Inc. v. Hulven Int'l, Inc.* (2017) 14 Cal.App.5th 156, 189.) A plaintiff must not only state the legal basis for the amendment, but also the factual allegations sufficient to state a cause of action or claim. (See *PGA West Residential Assn., Inc. v. Hulven Int'l, Inc.*, supra, 14 Cal.App.5th at p. 189.) Moreover, a plaintiff does not meet his or her burden by merely stating in the opposition to a demurrer or motion to strike that "if the Court finds the operative complaint deficient, plaintiff respectfully requests leave to amend." (See *Major Clients Agency v Diemer* (1998) 67 Cal.App.4th 1116, 1133; *Graham v. Bank of America* (2014) 226 Cal.App.4th 594, 618 [asserting an abstract right to amend does not satisfy the burden].)

Here, Plaintiffs

request leave to amend additional facts to entitle them to recover punitive damages. Although Plaintiffs do not specify the facts they could add, the Court finds that all of the deficiencies identified above can be cured by pleading the existing general facts with more specificity.

CONCLUSION AND ORDER

For the reasons stated, the Court grants Defendants' motion to strike in its entirety with leave to amend.

Plaintiffs shall file and serve an amended complaint in conformance with this ruling on or before July 23, 2026.

Defendants shall provide notice of the Court's ruling and file the notice with a proof of service forthwith.

DATED: July 2, 2026 _____

Michael
E. Whitaker

Judge
of the Superior Court